

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CIV2101246

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: ELIZABETH VARGAS

vs.

DEFENDANT: ANAHIT
GHANBARZADEH ET AL.

NATURE OF PROCEEDINGS: HEARING – OTHER: DISTRIBUTION OF REMAINING
SETTLEMENT PROCEEDS

RULING

This matter is on for disbursement of settlement funds following attorney Pius Joseph's lien on the settlement recovery. Mr. Joseph previously represented Plaintiff Elizabeth Vargas in this action. On September 11, 2023, Mr. Joseph filed a motion to be relieved of counsel based on irreconcilable differences with regards to representation. No further information was provided. On November 8, 2023, the court issued its order granting Mr. Joseph's motion. The following day, Mr. Joseph filed his lien on all monies recovered in this case. Ms. Vargas subsequently represented herself and obtained a settlement which was, according to her, in excess of prior offers.

An attorney who voluntarily withdraws from a case without justifiable cause is not entitled to recover a subsequent settlement without justifiable cause. The court in *Hensel v. Cohen* (1984) 155 Cal.App.3d 563 framed the inquiry as follows:

May an attorney accept a personal injury case on a contingent fee basis, determine that it is not worth his time to pursue the matter, instruct his client to look elsewhere for legal assistance, but hedge his bet by claiming a part of the recovery if a settlement is made or a judgment obtained through the efforts of a subsequent attorney? We answer this question with a resounding 'No.'

(*Hensel supra* at 564.)

At issue is whether there was justifiable cause for Mr. Joseph to withdraw his representation. An attorney arguing justifiable cause bears the burden of showing that: 1) counsel's withdrawal was mandatory, not permissive; 2) the overwhelming and primary motivation for counsel's withdrawal was based on the obligation to adhere to ethical

imperatives under the State Bar or other statutes; 3) counsel commenced the action in good faith; 4) following counsel's withdrawal, the client obtained a recovery; and 5) counsel demonstrated that his work contributed to the client's ultimate discovery. (*Estate of Falco* (1987) 188 Cal.App.3d 1004, 1015.)

Reviewing the docket in this matter, nothing suggests that the withdrawal was mandatory. A withdrawal from a case based on a "breakdown in communications" is generally not deemed to be a mandatory withdrawal. (*Rus, Milband & Smith v. Conkle & Olesten* (2003) 113 Cal.App.4th 656, 675-676).

Mr. Joseph has failed to demonstrate he is entitled to any portion of the settlement funds for attorney's fees. As to costs, Mr. Joseph provided a declaration in March 13, 2025, averring that he incurred at least \$2,100 in costs. The Court will therefore, order that \$2,100 in the settlement funds be disbursed to Mr. Joseph with the remainder to be disbursed to Plaintiff Elizabeth Vargas.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CIV2202947

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: SOFI LENDING CORP.

vs.

DEFENDANT: KERRY ATKINSON

NATURE OF PROCEEDINGS: MOTION – ENTRY OF JUDGMENT

RULING

Plaintiff filed a motion for entry of judgment following a settlement agreement executed in 2024. Under the terms of the agreement, Defendant acknowledged that she owed Plaintiff \$10,087.50 plus costs. The parties further stipulated to entry of judgment to be stayed pending monthly payments of at least \$231, for a total of \$5,548.13, but that if Defendant defaulted, the full amount would be due less any payments. Plaintiff provided a declaration indicating that only one payment of \$231 was made.

Plaintiff provided notice of the motion to Defendant and no opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

The Court grants the motions in light of the non-opposition and shall enter judgment in favor of Plaintiff and against Defendant in the amount of \$9856.50 plus costs.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNzEGafG.1>

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CIV2300516

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: HYPERCONSTRUCT CO., ET AL vs. DEFENDANT: SHAW WALTERS	
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NATURE OF PROCEEDINGS: MOTION – COMPEL

RULING

Continued to November 18, 2026 at 1:30 pm.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjE0SHNzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0000673

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: ASHLEY SHAH

vs.

DEFENDANT: NITIN SHAH, ET AL

NATURE OF PROCEEDINGS: MOTION – ADMISSIONS – DISCOVERY FACILITATOR PROGRAM

RULING

Defendant Nitin Shah filed a motion to deem the truth of matters specified in Requests for Admission Set One, against Defendant Fareed Himmati. Defendant Shah has also requested sanctions. Notice was provided to Defendant Himmati and no opposition was filed. The parties appeared on August 26, 2026, and the Court continued this hearing as no tentative was posted on this particular motion. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

The Court grants Defendant's motion in light of the non-opposition and orders that the truth of matters specified in the Requests for Admission be deemed admitted. Additionally, monetary sanctions shall be ordered in favor of Defendant Nitin Shah and against Defendant Himmati in the order of \$1,775 to be paid within 30 days of service of this order.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjE0SHNzEGafG.1>

Meeting ID: 161 548 7764
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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0002302

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: CHRIS B. BARGER

vs.

DEFENDANT: ANDREW W. LANDIES, ET
AL

NATURE OF PROCEEDINGS: MOTION – SUMMARY ADJUDICATION

RULING

The motion for summary adjudication of Issue Nos. 1-3 is granted.

Allegations in the Complaint and Cross-Complaint

Complaint

In his Complaint, Plaintiff/Cross-Defendant Chris Barger (“Barger”) alleges that he owns 682 Wilson Avenue in Novato (“the Barger Property”), where he lives with his wife, Cross-Defendant Myrna Barger (collectively, Chris and Myrna are the “Bargers”). (Complaint, ¶ 1.) Cross-Complainants Andrew W. Landies and Kristina J. Landies (the “Landies”) own and reside at 688 Wilson Avenue (“the Landies Property”). (*Id.* at ¶ 4.) Prior to 1972, the Barger Property and the Landies Property were each part of the same parcel owned by Dora Cash Young (“Young”). (*Id.* at ¶ 11.) In 1972, Young subdivided the parcel into smaller parcels comprising the Pine Knoll Estates subdivision. (*Id.* at ¶ 12.) The subdivision’s Lot 3 became the Landies Property, and a portion of Lot 4 became the Barger Property. (*Id.* at ¶ 13.) There is a well on the Barger Property. (*Id.*, ¶ 15.) Barger alleges that he has the right to use the water from the well and that the Landies have no recorded easement or license pertaining to the well. (*Id.* at ¶¶ 17-19.) Still, the Landies believe that they have a right to use the water from the well and to encroach upon the Barger Property to do it. (*Id.* at ¶¶ 21-22.) In October 2023, the Landies ran a pipe from the Landies Property through the Barger Property to the well. (*Id.* at ¶ 22.) Barger asserts causes of action to quiet title and for declaratory relief and trespass.

Cross-Complaint

The Landies filed a Cross-Complaint against the Bargers alleging that until 1972, the Barger Property and the Landies Property were part of a larger undivided parcel (the “Original Property”). The Original Property was originally owned by Joseph Cash (“Joseph”) and Dora

Cash (“Dora”). (Third Amended Cross-Complaint (“TAXC”), ¶ 6.)¹ Joseph and Dora’s son Lester Cash (“Lester”) married Lillian, who became Lillian Cash (“Lillian”). Joseph died and Dora later married Robert Young and became known as Dora Cash Young. Dora owned the property with Lester, who died in 2016. After Lester’s death, the property now known as the Landies Property was owned by Lillian and her son Jeffrey Cash. Dora/Lester dug the well that is in dispute. Prior to any subdivision of the Original Property, the well was located on the Original Property and was used to provide water to the Cash residence on the Original Property. (*Ibid.*)

In 1982, Lester submitted an application to the California State Water Resources Control Board (“SWRCB”) for a permit to formalize exclusive rights to utilize water from Pine Knoll Creek and related underflow through the well. (*Id.*) In support of his application, Lester submitted a map showing the location of the well on the Original Property on what is now known as Parcel 4/the Barger Property, the location of a clearly visible pump on what is now known as Lot 3/the Landies Property to draw water from the well, and piping to deliver the water from the well to what is now known as the Landies Property. (*Id.* and Exh. A to the TAXC.)

In August 1982, the SWRCB issued a Report of Inspection confirming the application, that the primary use of the water from the water source was for the Cash single family residence that then existed on the Original Property, the well’s exact location, and that there was a single connection for delivery of the water from the well located on what is now known as the Barger Property to the residence on what is now known as the Landies Property. The report also confirmed that there were separate and preexisting riparian water rights owned and utilized by Cash related to the Original Property. (*Id.* and Exh. B to the TAXC.)

Based on the application, map and SWRCB report, Dora/Lester obtained a license for diversion and use of water from the SWCRB, allowing them the right to appropriate water from the water source utilizing the well on what is now known as the Barger Property to do so. Lester and his family continued to maintain the license from that date forward until the Original Property was subdivided and Lot 3 was sold to the Landies. The license has been continued in effect by all predecessors to Landies (including Lester’s grandson Jeffrey) and by the Landies, for the benefit of what is now known as Lot 3/the Landies Property. On March 13, 1989, evidence of the license was recorded in the official records of the County of Marin. The Landies Property owners have paid all required fees and costs to maintain the license, to report on water usage, to allow inspections and to otherwise comply with SWRCB requirements to maintain the license. (*Id.*, ¶7 and Exh. C to the TAXC.)

In 1972, Dora/Lester subdivided the Original Property into smaller parcels and the subdivision created what is known as Pine Knolls Estates. (*Id.*, ¶8 and Exh. B to the TAXC.) However, the subdivision map fails to properly show the well and the rights to the well that are for the benefit of what is now known as Lot 3/the Landies Property. Before and after the subdivision of the Original Property, when Dora/Lester sold the lots subject to the subdivision

¹ The TAXC was filed after the Bargers filed their motion for summary adjudication but before the Landies filed their Opposition. The filing of the TAXC was allowed by a July 23, 2026 Order following an ex parte application filed by the Landies. According to the Landies, the TAXC makes only minor corrections to the Second Amended Cross-Complaint. Many of the allegations in the TAXC are made on information and belief.

(including Lot 3 and Lot 4), they intended to and did convey the rights to access the Barger Property and to use the well to access the water from the water source, i.e., a well easement, to the owner of Lot 3 only, which is now known as the Landies Property and that all any owners of Lot 4 would be subject to such rights. (*Id.*, ¶8.)

The home and improvements on what is now known as Lot 4/the Barger Property were constructed in 1979. The Bargers became the owner of the Barger Property in 2012. All of the Bargers' predecessor owners did not use the well to obtain water. The Landies became the owner of Lot 3/the Landies Property in 2020. The Landies' predecessors continuously used the well in an open and notorious way and understood that the well located on the Barger Property would continue to be used exclusively for the benefit of Lot 3/the Landies Property, and did not oppose or contest the well easement. (*Id.*, ¶10.) The Bargers knew at all times the well was intended to be used solely for the Landies Property. The well was prominent and visible, the water license was recorded at the time the Bargers purchased their property, the well delivered water only through a system to the Landies Property at the time the Bargers purchased their property, and Andrew Landies told Chris Barger that the Bargers had no right to use the well. (*Id.*, ¶11.) The tenant who lived on the Landies Property from 2006-2019, Dave Maahs, agreed to help the Bargers access water from the well and they both used water from the well through 2019. These actions were taken on Mr. Maahs' own accord and without the consent of Jeffrey, the Landies' predecessor. (*Id.*, ¶12.)

Recently, the flow from the well through the piping to the Landies Property has been reduced to almost nothing. The Landies believe the Bargers have taken action to reduce the flow. (*Id.*, ¶13.)

An agreement recorded in the Marin County's Recorder's Office in April 1973 references the well located in Parcel C of the map of Pine Knoll Estates. The Landies believe this provides evidence of an easement for the benefit of the Landies' Property to access the well on the Barger Property. (*Id.*, ¶14.)

The Landies' First Cause of Action seeks to quiet title to easement by prescription, the Second Cause of Action seeks to quiet title to easement by implication, the Third Cause of Action asserts easement by necessity, the Fourth Cause of Action alleges continuing trespass, the Fifth Cause of Action alleges fraud, the Sixth Cause of Action seeks declaratory relief, and the Seventh Cause of Action seeks injunctive relief.

The Bargers move for summary adjudication of the Third, Fourth and Fifth Causes of Action in the Landies' Cross-Complaint.

Timeliness

The Landies argue that the Bargers' motion is improper because it is set to be heard only six days before trial. However, the Court recently continued the trial date to September 28, 2026 upon conferring with the parties. While the motion will be heard just shy of 30 days, in light of the parties agreed upon scheduling and difficulties with scheduling the trial in October, the Court finds good cause to hear the motion 26 days before trial. The Court will therefore rule on the motion. (See *Soderberg v. McKinney* (1996) 44 Cal.App.4th 1760, 1765 n. 4; *Edmon &*

Karnow, Cal. Practice Guide: Civil Procedure Before Trial (Rutter Group June 2026 Update) § 10:74.)

Procedural Deficiencies

The Bargers submit a “Reply Separate Statement” with their Reply brief. This is not a recognized pleading and is an improper attempt to bypass the page limit requirements for the brief. The Court does not consider the “Reply Separate Statement” when ruling on this motion.

The Landies violate California Rule of Court 3.1350(f)(3) by including their chart of additional facts in the middle of their Opposition brief rather than at the end of their responsive Separate Statement.

Standard

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal. App. 4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 437c(p)(2).) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc. § 437c(p)(2).) “A triable issue of material fact exists if the evidence reasonably permits a trier of fact to find the contested fact in favor of the plaintiff in accordance with the applicable standard of proof.” (*Bakos v. Roach* (2025) 108 Cal.App.5th 390, 395.)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467; Code Civ. Proc. §437c(c).) The moving party’s evidence must be strictly construed, while the opposing party’s evidence must be liberally construed. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 838.) Any evidentiary doubts are resolved in favor of the opposing party. (*City of Santa Cruz v. Pacific Gas & Elec. Co.* (2000) 82 Cal.App.4th 1167, 1176.)

Request for Judicial Notice

The Bargers' request for judicial notice of the Individual Joint Tenancy Deed recorded on April 20, 1973 (Exhibit 13), the Decree filed in Marin County Superior Court and recorded on October 31, 1975 (Exhibit 14), the map of Pine Knoll Estates recorded on August 25, 1972 (Exhibit 15), and the parcel map recorded on February 7, 1977 (Exhibit 16), is granted. The Landies' request for judicial notice of the Pine Knolls subdivision map recorded on February 7, 1977 (Exhibit A), the Declaration of David Maahs filed on July 16, 2025 in this action (Exhibit B), the notice of lodging certified deposition transcript of Chris Barger previously lodged in this Court on May 18, 2026 (Exhibit C), the notice of lodging certified deposition transcript of Bill Curry previously lodged in this Court on May 18, 2026 (Exhibit D), and the notice of lodging certified deposition transcript of Andrew W. Landies (Exhibit E), is also granted. (Evid. Code §§ 452, 453.)

Evidentiary Objections

The Bargers' Objection Nos. 7 (personal knowledge as to Mr. Barger's intent or mental state), 10 (hearsay), 11 (hearsay as to Ms. Barrett's statements), 12 (hearsay as to Ms. Barrett's statements), 20 (hearsay as to Mr. Anderson's statements), 21 (hearsay as to Mr. Maahs' statements to Mr. Barger), 24 (hearsay as to Mr. Maahs' statements), 25 (hearsay as to Mr. Maahs' statements), 27 (hearsay as to Mr. Maahs' statements), 36 (hearsay as to Mr. Maahs' statements), 38 (legal conclusion as to whether Mr. Landies purchased the water rights), 40 (Evid. Code § 1523), 41 (hearsay as to Mr. Cash's statements), 43 (legal conclusion as to "my water rights"), 45 (personal knowledge/foundation as to what Mr. Barger and Mr. Maahs did), 46 (personal knowledge/foundation as to what Mr. Barger and Mr. Maahs did, what prior owners did, how the well previously operated, and who was previously allowed to use the well; legal conclusion as to "Unlawful Scheme"), 47 (personal knowledge/foundation), 48 (Evid. Code § 1523; legal conclusion as to "unlawful scheme"), 50 (personal knowledge as to what the Bargers have paid to SWRCB), and 51 (foundation), are sustained. Objection Nos. 1-6, 8, 9, 13-19, 22, 23, 26, 28-35, 39, 42, 44, 49, and 52 are overruled.

To the extent the Bargers' objections are not sustained for the specific reasons noted above, the objections are overruled.

Issue No. 1/Fifth Cause of Action - Fraud

The Fifth Cause of Action alleges that when the Bargers purchased their property, they knew there was a well on the property, that the well was for the benefit of the Landies Property, that the owners of the Landies Property had the right to access and use the well, and that the Bargers did not have the right to use the well. With this knowledge, the Bargers acted in concert with Mr. Maahs to secretly and unlawfully divert the water from the well to their own use and install the infrastructure to do so. After the Landies purchased their property, Chris Barger falsely stated that he was ignorant of any rights of any owners of the Landies Property to use the well and instead asserted that the Landies had no such rights. He did so to induce the Landies to relinquish their rights to use and access the well. As a result, the Landies have suffered a reduction in flow from the well and cannot develop their property as they intended.

The Bargers move for summary adjudication of the fraud cause of action on the ground that the Landies do not even plead reliance in their TAXC and have admitted they did not rely on the alleged fraudulent statements of Chris Barger. Actual and justifiable reliance is an essential element of a fraud cause of action. “A plaintiff asserting fraud by misrepresentation is obliged to . . . establish a complete causal relationship between the alleged misrepresentations and the harm claimed to have resulted therefrom. The causation aspect of actions for damage for fraud and deceit involves three distinct elements: (1) actual reliance, (2) damage resulting from such reliance, and (3) right to rely or justifiable reliance. Thus, there are two causation elements in a fraud cause of action. First, the plaintiff’s actual and justifiable reliance on the defendant’s misrepresentation must have caused him to take a detrimental course of action. Second, the detrimental action taken by the plaintiff must have caused his alleged damage.” (*Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1062 [citation and internal quotations omitted].)

The TAXC does not plead justifiable reliance. (See TAXC, ¶¶32-38; Bargers Undisputed Material Facts (“UMF”) 9, 10.) The Bargers also submit evidence that the Landies did not rely on Chris Barger’s July 22, 2022 statement because they never believed it to be true. Rather, the Landies believed that they were entitled to exclusive use of the well. Andrew Landies testified in his deposition that he did not believe Chris Barger’s statement “Yeah, that’s my well” at the time it was made. (UMF 4 [“Q. So when he disagreed, did you believe him? A. No.”].) He also testified that as of the date of this conversation with Chris Barger, he had already concluded that he was entitled to exclusively use the well based on other sources of information. (UMF 7 [“Q. So as you understood it, you had the exclusive rights to use the well and to access it? A. Yes.”].)

The Landies argue that their mind was not totally made up at the time; rather, they were in the process of investigating the parties’ rights when this conversation occurred. They cite to pages 63-65 and 91-92 of Andrew Landies’ deposition in which he testified that he did not know whose property the well was on at the time he had the conversation with Chris Barger, and the conversation was the first crack at digging into the background of the well. He also testified that by the following month, he was beginning to investigate what his rights were with respect to the well. The Landies also submit the declaration of Andrew Landies in connection with their Opposition, in which Mr. Landies states he began his investigation in earnest after his conversation with Mr. Barger and that the Bargers continued to maintain that the Landies had no right to the well up through the time this case was filed. Because of the Barger’s threats and claims, Mr. Landies states, the Landies have taken no action to enforce their rights such as drilling a new well. (Declaration of Andrew Landies, ¶¶6-8.)

The Landies thus argue that their “reliance” on Chris Barger’s July 22, 2022 statement was expanding their investigation into who owned or had rights to the well, because the investigation was just beginning at the time of the parties’ conversation. The Landies contend that the Bargers “caused the Landies to have to investigate in earnest to establish the true facts and to determine if Barger was lying to them. Landies exercised forbearance from enforcing their easement rights to use, access or repair the Well, or apportion the Barger use of water from the Well, while they investigated the facts and claims.” (Opposition, p. 2.)

The Court grants the motion as to Issue No. 1. The TAXC does not actually allege reliance. While the Landies allege in the TAXC that the Bargers *intended* to induce the Landies

to relinquish their rights to use and access the well, they never allege that they did so. To the contrary, the Landies (and the Bargers) assert that they refuse to relinquish any rights, resulting in the current lawsuit. The Landies' argument that they continued or expanded their investigation based on Mr. Barger's statement fares no better, as the evidence submitted by the Landies on this issue is insufficient to create a disputed issue of material fact. Andrew Landies testified he did not believe Mr. Barger's statement at the time it was made based on information Mr. Landies had already learned. Mr. Landies' investigation into his rights was already happening and Mr. Barger's statement did nothing to change that. Further, the damage claimed in the Fifth Cause of Action – reduction in flow from the well, inability to access the well, inability to use and develop the Landies Property, diminution of value of the Landies Property, and legal fees to regain access to the well – are not damages from any reliance on Mr. Barger's allegedly fraudulent statement. (See TAXC, ¶37.) If anything, they would be damages stemming from the Bargers' physical use and control over the well only.

The Landies argue that the Court should also consider their allegation that Mr. Barger concealed the fact that he and Mr. Maahs modified the well without permission. However, this allegation is included as factual support for their contention that Mr. Barger's July 22nd statement was false and that he knew it was false. (TAXC, ¶34.) The allegation is not alleged as a separate basis for a fraud claim. Even if one were to read the fraud claim as including a fraudulent concealment element, however, the Landies still fail to prove reliance.

Finally, the Landies argue that the Court should also consider conduct that occurred *after* Mr. Barger's statement, including the Bargers' continued assertions of their claims and their assertion that the Landies would be trespassing if they accessed the well. These allegations are not included in the TAXC and thus outside the scope of this motion. "It is well settled that the pleadings set the boundaries of the issues to be resolved at summary judgment. Thus, a defendant moving for summary judgment need address only the issues raised by the complaint; the plaintiff cannot bring up new, unpleaded issues in his or her opposing papers. [Citation.] To create a triable issue of material fact, the opposition evidence must be directed to issues raised by the pleadings." (*Vulk v. State Farm General Ins. Co.* (2021) 69 Cal.App.5th 243, 255 [citations and internal quotations omitted].) Accordingly, the Landies cannot defeat summary adjudication on the basis of events not actually alleged in the Fifth Cause of Action. In any event, as noted above, the Landies fail to present any evidence of reliance on this conduct.

Issue No. 2/Fourth Cause of Action – Continuing Trespass

In their Fourth Cause of Action, the Landies allege that the Bargers' installation of piping on the Barger Property to divert water from the well, from the Landies Property to the Barger Property, has been ongoing since 2014. Further the Bargers have installed additional infrastructure onto or adjacent to the well to further divert and utilize the water for their own use. As of May 2025, the water flow from the well to the Landies Property has been reduced to almost zero.

The Bargers move for summary adjudication of this cause of action on the ground that the Landies do not allege that the Bargers entered onto, or interfered with, the Landies Property. They allege only that the Bargers performed work on piping located on the Barger Property.

“Trespass is an invasion of the plaintiff's interest in the exclusive possession of land. The essence of the cause of action for trespass is an unauthorized entry onto the land of another. Thus, in order to state a cause of action for trespass a plaintiff must allege an unauthorized and tangible entry on the land of another, which interfered with the plaintiff's exclusive possessory rights.” (*McBride v. Smith* (2018) 18 Cal.App.5th 1160, 1173-1174 [citations and internal quotations omitted].) In *McBride*, the court found that the plaintiff could not state an action for trespass because she could not establish that she had an exclusive possessory right in the property comprising the easement or that the defendant's entry onto the easement property was unauthorized. The court held: “An easement represents a limited privilege to use the land of another, . . . but does not create an interest in the land itself. An easement involves primarily the privilege of doing a certain act on, or to the detriment of, another's property. An easement gives a nonpossessory and restricted right to a specific use or activity upon another's property, which right must be less than the right of ownership. Thus, [t]he owner of an easement is not the owner of the property, but merely the possessor of a right to use someone's land for a specified purpose . . . Thus, as a matter of law, [the plaintiff] cannot state a cause of action against the [defendants] for trespassing on the Secondary Access Easement because they own that land and her easement does not give her a possessory right, not to mention an exclusive possessory right in that property.” (*Id.* at p. 1174 [citations and internal quotations omitted].)

Therefore, even though the Landies allege they have easement rights to access the well, the existence of this easement even if proven would not support a trespass cause of action. The Landies' other argument focuses on a cause of action they do not actually allege, i.e., unreasonable interference with the use and enjoyment of an easement. This argument is irrelevant to the motion for summary adjudication of Issue No. 2, which challenges the Landies' trespass cause of action.

The Landies argue in response to the Bargers' UMF 14 that they also “allege that Barger and David Maahs wrongfully installed piping Landies to on both Landies and Barger property to unlawfully divert water from the Well and deprive the Landies Property owners from such rights.” This is not the case, however, as there is no allegation in the TAXC that that the Bargers' modifications to the piping were on the Landies Property. The Landies also do not present any evidence of wrongfully installed piping on their property.

The motion for summary adjudication of Issue No. 2 is granted.

Issue No. 3/Third Cause of Action – Easement by Necessity

The Landies concede in their Opposition that they cannot show easement by necessity. (Opposition, pp. 3 and 16.) The Court therefore grants the motion as to Issue No. 3.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHNgEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0002678

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: JENNIFER LAMERS

and

DEFENDANTS: MAGNUS JULLE
LE'VICKI ET AL.

NATURE OF PROCEEDINGS: MOTION - LEAVE

RULING

Plaintiff Jennifer Lamers ("Plaintiff") seeks leave to file a third amended complaint. Defendants Magnus Julle Le'Vicki, Corinthian Yacht Club of San Francisco, Kevin Roesler and Warren Lee ("Defendants") oppose the filing.

LEGAL STANDARD

Under Code of Civil Procedure section 473, subdivision (a)(1), the Court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding. As judicial policy favors resolution of all disputed matters in the same lawsuit, courts liberally permit amendments of the pleadings. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939.) Denial is rarely justified unless opposing parties demonstrate unreasonable delay plus prejudice if the motion is granted. A mere showing of unreasonable delay by the plaintiff without any showing of resulting prejudice to defendants is an insufficient ground to justify denial of the plaintiff's motion. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) Prejudice exists where the amendment would require delaying the trial, resulting loss of critical evidence or added costs of preparation, and an increased burden of discovery, inter alia. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.)

Generally, arguments attacking the merits of the proposed amendments do not justify denial of the motion. Courts allow the amendment and then let the parties test the legal sufficiency in other appropriate proceedings such as a demurrer. (*See Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048, and *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760.)

A party requesting leave to amend must also comply with California Rules of Court, rule 3.1324. Compliance with the Rules of Court is satisfied by including a copy of the proposed

amended pleading, detailing what changes will be made from the previous pleading by stating what allegations are to be deleted or added as compared to the previous pleading including page, paragraph and line number, and attaching a declaration by plaintiff's counsel, as to: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) why the request was not made earlier. (Cal. Rules of Court, rule 3.1324(a)-(b).)

DISCUSSION

In this case, Plaintiff has complied with California Rule of Court 3.1324 by providing a redlined version of the proposed third amended complaint which details the changes to me made from the current complaint. (Exh. W to Chung Decl.)

Plaintiff asserts that although she sought discovery in October 2024, she did not receive pertinent discovery about the tortious conduct that led to her suspension until March 31, 2026 and that documents continue to be outstanding. At this time, Plaintiff learned that Defendant Le'Vicki did not make defamatory statements about Plaintiff to board members and that board members did not vote to ban Plaintiff from the club but asked Defendant Roesler to request that Plaintiff take a four month pause from the club. Plaintiff asserts that Lee then made a false statement that Plaintiff drunkenly told Lee that Defendant Le'Vicki had raped her, and that Roesler never told the board about this, but sent Plaintiff an email about an indefinite suspension.

According to Plaintiff these new facts have resulted in the need to drop the cause of action for defamation against Defendant Le'Vicki, but to add new facts and claims regarding aiding and abetting. Additionally, Plaintiff believes that there are new facts necessary for pleading as to the intentional infliction of emotional distress claim.

Defendants oppose the motion asserting that there is no good cause for the delay in waiting to file the motion from March 2026 until July 2026. Defendants also assert that the causes of action will be untimely such that amendment as to some of the claims would be futile. Defendants further raise concerns about the prejudice resulting from late amendments in light of the pending motion for summary judgment and trial.

In light of the delayed discovery, the court finds that Plaintiff has adequately justified the reasons for delay in seeking the amendment and has, therefore, satisfied all requirements for leave to amend. As to Defendants claims that the amendments would be futile, those claims may properly be tested once the complaint is amended.

In light of the upcoming motion and trial date, the court agrees that the trial date should be continued for 180 days to allow Defendants to evaluate and respond to the amended complaint.

The motion for leave to amend is granted. The parties shall appear to reschedule the trial date.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNgEGafG.1>

Meeting ID: 161 548 7764

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0002924

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: LANDMARK HOME SOLUTIONS, LLC vs. DEFENDANT: FREDERICK SHEIN	
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NATURE OF PROCEEDINGS: MOTION – EXTEND TIME

RULING

This matter is continued to October 7, 2026 at 1:30 pm per the parties' stipulation

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjE0SHNzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0003540

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: WELLS FARGO BANK, N.A.	
vs.	
DEFENDANT: JOHN M. NEWBURY	

NATURE OF PROCEEDINGS: MOTION – ATTORNEY’S FEES

RULING

This is a debt collection case in which Plaintiff obtained a default judgment against Defendant for \$12,958.42 plus \$470 in costs. Plaintiff also sought attorney’s fees. The court agrees that Plaintiff is entitled to attorney’s fees under the fee schedule and awards such fees in the amount of \$1,125.

Plaintiff shall prepare a proposed order.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjE0SHNzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008149

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: DAVID STIER, ET AL

vs.

DEFENDANT: WOOLEY LANDSCAPES
LLC

NATURE OF PROCEEDINGS: MOTION - LEAVE

RULING

Plaintiffs filed a motion for leave to file a second amended complaint. The motion was served on Defendants and no opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

The Court grants the motion in light of the non-opposition and orders that the second amended complaint be filed within ten days of service of this order.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHnZEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006803

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: CABOUCHON
PROPERTIES, LLC

vs.

DEFENDANT: L L & L LLC

NATURE OF PROCEEDINGS: 1) MOTION – COMPEL DISCOVERY FACILITATOR
PROGRAM
2) MOTION – COMPEL – DISCOVERY FACILITATOR PROGRAM

RULING

Before the Court are two motions to compel. Plaintiff seeks further responses to Form Interrogatories, Special Interrogatories and documents responsive to its Request for Production of Documents. Defendant seeks further responses to its Requests for Production of Documents. Each side seeks monetary sanctions.

The parties have narrowed their disputes as follows:

Plaintiff's Motion

According to Plaintiff's Declaration of Non-Resolution, at issue are responses to all Form Interrogatories, Set One, and all Special Interrogatories, Set One except Special Interrogatory No. 6. Plaintiff also seeks documents responsive to Request Nos. 29, 30, and 32.

Defendant's Declaration of Non-Resolution avers it has agreed to produce supplemental responses to Form Interrogatories 12.1 through 12.6, 14.1, 15.1 and 16.1 based on its definition of incident. It has also agreed that it will confer with its client to see if there are additional documents responsive to Request Nos. 29, 30, 32. It has not specified a date by which responses or documents will be produced.

As to the Special Interrogatories, Defendant complains that Special Interrogatories Nos. 3-5 are overbroad because they seek the identity of all maintenance technicians who have worked at the subject property from January 2021 through the present. Defendant also argues that Nos. 9-11, 17-23, 22-27 and 58-60 are not relevant to the leak involved in this lawsuit because they seek information as to all tenants regarding leaks over the last five years.

Legal Standard

“Unless otherwise limited by order of the court. . . any party may obtain discovery regarding *any matter, not privileged*, that is *relevant to the subject matter* involved. . . if the matter either is itself admissible in evidence or appears *reasonably calculated to lead to the discovery of admissible evidence. . .*” (Code Civ. Proc. § 2017.010 [emphasis added].) “Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits.” (Code Civ. Proc. § 2030.220(a).) And, “[i]f the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.” (Code Civ. Proc. § 2030.220(c).)

The burden of justifying an objection falls squarely on the party resisting a response. (*W. Pico Furniture Co. of Los Angeles v. Superior Court* (1961) 56 Cal.2d 407,422.)

Analysis

As to the responses to Form Interrogatories, it is unclear why, several months later, Defendant has failed to provide responses. Defendant has defined the word “incident” and Plaintiff does not appear to object to its definition. Responses must be provided forthwith.

Defendant’s objections to Special Interrogatories Nos. 3-5 are overruled. Plaintiff has properly narrowed the time frame in its requests to January 2021. Overbreadth objections to interrogatories are disfavored and should not be considered absent specific evidence. (*Burke v. Superior Court* (1969) 71 Cal.2d 276, 281.) Similarly, the remaining interrogatories to which relevancy objections have been interposed are overruled as the interrogatories are calculated to lead to admissible evidence. Finally, Defendant must provide additional documents requested and promised.

In light of the above, Defendant shall provide further code-compliant responses to all Form Interrogatories and Special Interrogatories as specified above within ten days of service of this order. Defendant shall provide documents responsive to 29, 30 and 32, and if no documents exist, it shall amend its responses to Plaintiff’s Request for Documents to so state.

Sanctions are awarded in favor of Plaintiff Cabouchon and against Defendant LL&LLC in the amount of \$4,500 as Plaintiff is the prevailing party and Defendant has failed to justify circumstances which would argue against the imposition of such sanctions.

Defendant’s Motion

Defendant’s motion appears to seek further responses related to Plaintiff and any of its insurance carriers regarding the property. No separate statement was filed. Defendant’s Declaration of Non-Resolution appears to clarify this discovery concerns Request Nos. 14, 16 and 18. However, Defendant did not provide a copy of these discovery requests or responses.

The Court is unable to discern the specific requests at issue and on this basis, the motion is denied.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008270

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

IN THE MATTER OF:

SAUSALITO YACHT CLUB MEMBERS
FOR FAIR GOVERNANCE

NATURE OF PROCEEDINGS: 1) DEMURRER
2) MOTION - STRIKE

RULING

The demurrer to the First and Second Causes of Action is sustained as to Plaintiff Sausalito Yacht Club Members for Fair Governance only, without leave to amend, and is overruled in all other respects. Plaintiffs must file verifications for the individual plaintiffs by no later than September 14, 2026. If the verification of any individual plaintiff is not filed by that day, the Court will enter a further order sustaining the demurrer as to those plaintiffs. The demurrer to the Third Cause of Action is overruled. The motion to strike is denied in its entirety.

Allegations in the Second Amended Verified Petition and Derivative Complaint

Petitioner/Plaintiff Sausalito Yacht Club Members for Fair Governance ("SYCMFG") is an unincorporated California association suing on behalf of its members individually and derivatively on behalf of the Sausalito Yacht Club (the "Club"), a California mutual benefit non-profit corporation. Petitioners/Plaintiffs Marisa McArthur ("M. McArthur"), Marge Bottari ("Bottari"), Tammy Blanchard ("T. Blanchard"), Ross Blanchard ("R. Blanchard"), Brian McArthur ("B. McArthur"), and Tina Frank ("Frank") are current or former members of the Club. Together, SYCMFG and the individual petitioners/plaintiffs will be referred to as "Plaintiffs".

Plaintiffs allege that leadership of the Club manipulated its member disciplinary process to expel, suspend and reprimand M. McArthur, then the Vice Commodore of the Club who was running for the position of 2026 Commodore as a write-in candidate, and her family and supporters, for the purpose of favoring her rival, Defendant Executive Board Chair Tom Aden ("Aden"), for the position. M. McArthur, her family members, and supporters were disciplined after they used the member roster to send emails promoting M. McArthur's candidacy. Aden

and Defendant 2025 Commodore Russell Croce (“Croce”) determined that this use violated the Club’s rule against using roster and member emails for “commercial or political purposes.” Following this determination, the Club expelled M. McArthur for life and suspended her mother, Defendant Frank, and her husband Defendant B. McArthur. Plaintiffs Bottari, T. Blanchard, and R. Blanchard, who sent emails endorsing McArthur, also received lifetime expulsions. Aden was ultimately elected for the position and six other candidates chosen by the nominating committee for other positions were elected despite being unqualified. Nineteen of the 20 members subjected to disciplinary charges supported M. McArthur over Aden for Commodore. Two people who raised issues with the process at the Annual Meeting, Cyndi Wheeler and Jock Rystrom, were also disciplined.

The First Cause of Action seeks a writ of traditional mandate compelling the defendants to vacate the expulsions, suspensions and reprimands and to restore Plaintiffs as members in good standing. The Second Cause of Action asserts a derivative claim on behalf of the Club for breach of fiduciary duty, abuse of control, and waste. The Third Cause of Action (misabeled as the Fifth Cause of Action) seeks declaratory relief.

I. Demurrer

A. Procedural Deficiency

Both Defendants and Plaintiffs fail to comply with California Rule of Court 3.1113(f).

B. Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law, and it raises only a question of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “ordinarily is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099 [citation and internal quotations omitted].) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe*, 42 Cal.4th at 551, fn. 5.) The court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

C. Request for Judicial Notice

Defendants’ request for judicial notice of the Petition/Complaint (Exhibit A), the First Amended Petition/Complaint (Exhibit B), the Second Amended Petition/Complaint (Exhibit C), and the Club’s Rules and Bylaws (Exhibit D), is granted. (Evid. Code §§ 452, 453.) As to Exhibit D, the Court takes judicial notice of the Rules and Bylaws as they are referenced in the Second Amended Complaint and Defendants do not dispute their authenticity. (See *Performance Plastering v. Richmond American Homes* (2007) 153 Cal.App.4th 659, 666, n.2; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 115–116; *Ingram v. Flippo* (1999) 74 Cal.App.4th 1280, 1285, n.3, disapproved on other grounds in *Leon v.*

County of Riverside (2023) 14 Cal.5th 910; *Marina Tenants Ass'n v. Deauville Marina Dev. Co.* (1986) 181 Cal.App.3d 122, 130; *Salvaty v. Falcon Cable Television* (1985) 165 Cal.App.3d 798, 800, n.1; *Swiss Park, Inc. v. City of Duarte* (1982) 136 Cal.App.3d 755, 758.)

D. First Cause of Action – Writ of Mandate

1. Standing of the SYCMFG

Defendants demur to the First Cause of Action on the ground that Plaintiff SYCMFG lacks standing to seek a writ of mandate. In the First Amended Complaint, this cause of action was asserted by SYCMFG only and the Court sustained the demurrer on the ground that the individuals seeking relief should also be named:

In order to ascertain whether Plaintiff has standing, the Court must look at the specific relief requested in the Complaint. In the First Cause of Action, Plaintiff seeks a writ of mandate compelling Defendants to vacate certain disciplinary actions. (Complaint, ¶¶89-94.) Plaintiff alleges that different levels of discipline were imposed on Plaintiff's individual members, based on different conduct. (*Id.*, ¶¶64, 65.) The demurrer is sustained as to the First Cause of Action on the ground that it seeks relief for Plaintiff's various members based on conduct and/or discipline that is specific or personal to those members. The Complaint should also be verified by the individual members as to this cause of action.

Plaintiffs do not address this argument in their Opposition but rather ignore it entirely. The Court sustains the demurrer to the First Cause of Action as against SYCMFG on the ground that it does not have standing to challenge the specific disciplinary actions taken against certain individuals. Those individuals have now been added as plaintiffs and can pursue this cause of action as to the alleged specific harm they personally suffered as a result of the Defendants' conduct.

2. Named Defendants

Defendants demur to this cause of action on the additional ground that Plaintiffs fail to identify which individual defendants can or should be compelled to reverse decisions or vacate elections. The Court does not sustain the demurrer on this basis. Plaintiffs now identify the Club, the specific boards or committees within the Club whom Plaintiffs contend had responsibility for or control over conduct alleged in the Second Amended Complaint, and individual Club members who Plaintiffs contend engaged in conduct alleged in the Second Amended Complaint. Defendants argue that it is too confusing to tell who is being sued for what conduct, but the Second Amended Complaint provides adequate factual allegations as to each named defendant for Defendants to proceed. Defendants also contend that some individuals are no longer members of certain boards or committees, but that is a factual issue not appropriate for determination on demurrer. The parties can discern through discovery the specific individuals with the current ability to provide the relief Plaintiffs seek.

Defendants also argue that Defendants Executive Board, Sausalito Yacht Club Flag Officers and Chairs Committee, and Rules Committee cannot be named defendants because they are not separate legal entities from the Club. However, boards and committees, and individuals on those boards and committees, can be named as respondents in a writ of mandamus proceeding. (See Code Civ. Proc. § 1085; *Taylor v. Burks* (1907) 6 Cal.App. 225, 227-228; *State v. Superior Court* (1974) 12 Cal.3d 237, 255.)

3. Verifications; Certain Named Plaintiffs

Defendants demur to this cause of action on the additional ground that the individual plaintiffs have not verified the Second Amended Complaint, even though the Court indicated in its prior order that individual verifications were necessary. Plaintiffs concede that the individual Plaintiffs have not filed verifications, but state that they will. They attach the verifications of T. Blanchard and Bottari and state the others will be provided and filed before the hearing. The Court will address this issue at the hearing. To the extent there remain individuals who have not filed verifications by September 14, 2026, the Court will sustain the demurrer as to those individuals.

Defendants also argue that B. McArthur, R. Blanchard and Frank are not proper plaintiffs because they have served their suspensions, and B. McArthur's theory of his case and his damages is inconsistent with Club rules. These are fact issues not appropriate for determination on demurrer.

E. Second Cause of Action – Derivative Action

Defendants demur to the Second Cause of Action on the ground that all of the individual plaintiffs are not currently members of the Club and therefore cannot participate in a derivative action. Defendants argue that each of these individuals was suspended or expelled at the time of the filing of the original Complaint and thus not a member of the Club. Plaintiff SYCMFG has never been a member of the Club.

The demurrer is sustained as to SYCMFG, which has never been a member and therefore cannot bring a derivative claim. As to the individual plaintiffs, the Second Cause of Action alleges that “[a]t all relevant times, Petitioners/Plaintiffs were members in good standing of the Sausalito Yacht Club.” (SAC, ¶117.) However, they also allege that M. McArthur, Bottari, T. Blanchard, and R. Blanchard were expelled for life effective November 22, 2025. (*Id.*, ¶¶9, 17-20.) They allege that B. McArthur and Frank were suspended for six months. Frank's suspension was also effective November 22, 2025. (See SAC, ¶22.) Therefore, under these allegations, Frank was a member at the time the original Complaint was filed on November 21, 2025.¹ As the allegations do not show that she is not a member currently, she can proceed with the derivative action against the defendants. Further, as to all individual plaintiffs, there are

¹ Defendants state in their Reply that Frank has resigned from the Club and is no longer a member as of June 30, 2026. The Court does not consider this statement in ruling on the demurrer. (See *Kerivan v. Title Ins. & Trust Co.* (1983) 147 Cal.App.3d 225, 229.) In any event, the Court has found that Plaintiffs have alleged sufficient facts to support an exception to the continuous ownership rule.

sufficient facts alleged that an exception to the continuous ownership requirement may apply. In *Haro v. Ibarra* (2009) 180 Cal.App.4th 823, 836, the court noted that “equitable considerations might apply if the plaintiff was deprived wrongfully of standing.” Here, Plaintiffs allege that they were wrongfully expelled or suspended. This is sufficient to survive a demurrer based on this exception.

Defendants also argue that Plaintiffs are improperly using a derivative claim to recover for their personal damages rather than damages suffered by the Club. Defendants are correct that in paragraph 121, Plaintiffs ostensibly allege harm to the Club but this harm is actually the alleged mistreatment of the individual plaintiffs. (See SAC, ¶121.) However, Plaintiffs also allege damage to the Club. Plaintiffs allege that the Club has been harmed because it had to retain outside counsel and pay attorney’s fees, and that Club assets and funds have been diverted by the individual defendants to pursue a course of action against other members (the plaintiffs) whom they personally perceived as opponents. (*Id.*, ¶¶123, 125.) Plaintiffs’ prayer for relief also confirms they seek only damages in favor of the Club. (Prayer for Relief, ¶4.) Defendants argue that attorney’s fees and expenses paid by the Club is protected under the business judgment rule, but this is an issue of fact not appropriate for determination on demurrer. (See *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268, 280 [“The business judgment rule raises various issues of fact, including whether a director acted as an ordinarily prudent person under similar circumstances and made a reasonable inquiry as indicated by the circumstances. Such questions generally should be left to a trier of fact”] [citation and internal quotations omitted].)

Finally, Defendants argue that Plaintiffs have not sufficiently alleged compliance with Corporations Code Section 7710(b)(2), which provides: “The plaintiff alleges in the complaint with particularity plaintiff’s efforts to secure from the board such action as plaintiff desires, or the reasons for not making such effort, and alleges further that plaintiff has either informed the corporation or the board in writing of the ultimate facts of each cause of action against each defendant or delivered to the corporation or the board a true copy of the complaint which plaintiff proposes to file.” Plaintiffs have made allegations sufficient to comply with Section 7710(b)(2) in paragraphs 127-130 of the Second Amended Complaint. The demurrer is therefore not sustained on this basis.

F. Third Cause of Action – Declaratory Relief

Defendants demur to the Third Cause of Action for declaratory relief on the grounds that the individual plaintiffs lack standing under the continuous ownership rule and Plaintiffs do not adequately specify the defendants with whom they have a controversy. These arguments are rejected for the reasons discussed above. Defendants also argue that the declaration Plaintiffs seek violates the sections of the Club Bylaws that allow the Club Executive Board and Flag Officers and Chairs Committee exclusive jurisdiction over how the Bylaws and Rules are to be interpreted. This argument also fails. Plaintiffs are entitled to a declaration from the Court regarding the interpretation of the Bylaws as part of their claims that Defendants failed to act in good faith and in a fair and reasonable manner and that the Defendants’ election process was not valid.

II. Motion to Strike

Defendants move to strike allegations in support of the Second Cause of Action regarding harm to the individual plaintiffs. The Court denies this request as these allegations are part of an overall scheme and course of conduct alleged by Plaintiffs. Defendants move to strike allegations in support of the Third Cause of Action based on the same arguments they made in their demurrer. This portion of the motion is denied for the reasons discussed above. Defendants move to strike Plaintiffs' request for punitive damages on the ground it is not supported by sufficient facts showing malice, fraud or oppression. The Court denies this part of Defendants' motion as well. There are sufficient facts alleged to allow Plaintiffs to proceed with their prayer for punitive damages. Finally, Defendants move to strike the request for attorney's fees. The Court denies this as well, as an award of attorney's fees is available to plaintiffs in a successful derivative suit if the suit provided a substantial benefit to the corporation. (See *Brusso v. Running Springs Country Club* (1991) 228 Cal.App.3d 92, 111 n. 7; *Fletcher v. A. J. Indus., Inc.* (1968) 266 Cal. App. 2d 313, 320.)

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHnzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008270

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

IN THE MATTER OF:

SAUSALITO YACHT CLUB MEMBERS
FOR FAIR GOVERNANCE

NATURE OF PROCEEDINGS: 1) DEMURRER
2) MOTION - STRIKE

RULING

The demurrer to the First and Second Causes of Action is sustained as to Plaintiff Sausalito Yacht Club Members for Fair Governance only, without leave to amend, and is overruled in all other respects. Plaintiffs must file verifications for the individual plaintiffs by no later than September 14, 2026. If the verification of any individual plaintiff is not filed by that day, the Court will enter a further order sustaining the demurrer as to those plaintiffs. The demurrer to the Third Cause of Action is overruled. The motion to strike is denied in its entirety.

Allegations in the Second Amended Verified Petition and Derivative Complaint

Petitioner/Plaintiff Sausalito Yacht Club Members for Fair Governance (“SYCMFG”) is an unincorporated California association suing on behalf of its members individually and derivatively on behalf of the Sausalito Yacht Club (the “Club”), a California mutual benefit non-profit corporation. Petitioners/Plaintiffs Marisa McArthur (“M. McArthur”), Marge Bottari (“Bottari”), Tammy Blanchard (“T. Blanchard”), Ross Blanchard (“R. Blanchard”), Brian McArthur (“B. McArthur”), and Tina Frank (“Frank”) are current or former members of the Club. Together, SYCMFG and the individual petitioners/plaintiffs will be referred to as “Plaintiffs”.

Plaintiffs allege that leadership of the Club manipulated its member disciplinary process to expel, suspend and reprimand M. McArthur, then the Vice Commodore of the Club who was running for the position of 2026 Commodore as a write-in candidate, and her family and supporters, for the purpose of favoring her rival, Defendant Executive Board Chair Tom Aden (“Aden”), for the position. M. McArthur, her family members, and supporters were disciplined after they used the member roster to send emails promoting M. McArthur’s candidacy. Aden

and Defendant 2025 Commodore Russell Croce (“Croce”) determined that this use violated the Club’s rule against using roster and member emails for “commercial or political purposes.” Following this determination, the Club expelled M. McArthur for life and suspended her mother, Defendant Frank, and her husband Defendant B. McArthur. Plaintiffs Bottari, T. Blanchard, and R. Blanchard, who sent emails endorsing McArthur, also received lifetime expulsions. Aden was ultimately elected for the position and six other candidates chosen by the nominating committee for other positions were elected despite being unqualified. Nineteen of the 20 members subjected to disciplinary charges supported M. McArthur over Aden for Commodore. Two people who raised issues with the process at the Annual Meeting, Cyndi Wheeler and Jock Rystrom, were also disciplined.

The First Cause of Action seeks a writ of traditional mandate compelling the defendants to vacate the expulsions, suspensions and reprimands and to restore Plaintiffs as members in good standing. The Second Cause of Action asserts a derivative claim on behalf of the Club for breach of fiduciary duty, abuse of control, and waste. The Third Cause of Action (misabeled as the Fifth Cause of Action) seeks declaratory relief.

I. Demurrer

A. Procedural Deficiency

Both Defendants and Plaintiffs fail to comply with California Rule of Court 3.1113(f).

B. Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law, and it raises only a question of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “ordinarily is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099 [citation and internal quotations omitted].) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe*, 42 Cal.4th at 551, fn. 5.) The court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

C. Request for Judicial Notice

Defendants’ request for judicial notice of the Petition/Complaint (Exhibit A), the First Amended Petition/Complaint (Exhibit B), the Second Amended Petition/Complaint (Exhibit C), and the Club’s Rules and Bylaws (Exhibit D), is granted. (Evid. Code §§ 452, 453.) As to Exhibit D, the Court takes judicial notice of the Rules and Bylaws as they are referenced in the Second Amended Complaint and Defendants do not dispute their authenticity. (See *Performance Plastering v. Richmond American Homes* (2007) 153 Cal.App.4th 659, 666, n.2; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 115–116; *Ingram v. Flippo* (1999) 74 Cal.App.4th 1280, 1285, n.3, disapproved on other grounds in *Leon v.*

County of Riverside (2023) 14 Cal.5th 910; *Marina Tenants Ass'n v. Deauville Marina Dev. Co.* (1986) 181 Cal.App.3d 122, 130; *Salvaty v. Falcon Cable Television* (1985) 165 Cal.App.3d 798, 800, n.1; *Swiss Park, Inc. v. City of Duarte* (1982) 136 Cal.App.3d 755, 758.)

D. First Cause of Action – Writ of Mandate

1. Standing of the SYCMFG

Defendants demur to the First Cause of Action on the ground that Plaintiff SYCMFG lacks standing to seek a writ of mandate. In the First Amended Complaint, this cause of action was asserted by SYCMFG only and the Court sustained the demurrer on the ground that the individuals seeking relief should also be named:

In order to ascertain whether Plaintiff has standing, the Court must look at the specific relief requested in the Complaint. In the First Cause of Action, Plaintiff seeks a writ of mandate compelling Defendants to vacate certain disciplinary actions. (Complaint, ¶¶89-94.) Plaintiff alleges that different levels of discipline were imposed on Plaintiff's individual members, based on different conduct. (*Id.*, ¶¶64, 65.) The demurrer is sustained as to the First Cause of Action on the ground that it seeks relief for Plaintiff's various members based on conduct and/or discipline that is specific or personal to those members. The Complaint should also be verified by the individual members as to this cause of action.

Plaintiffs do not address this argument in their Opposition but rather ignore it entirely. The Court sustains the demurrer to the First Cause of Action as against SYCMFG on the ground that it does not have standing to challenge the specific disciplinary actions taken against certain individuals. Those individuals have now been added as plaintiffs and can pursue this cause of action as to the alleged specific harm they personally suffered as a result of the Defendants' conduct.

2. Named Defendants

Defendants demur to this cause of action on the additional ground that Plaintiffs fail to identify which individual defendants can or should be compelled to reverse decisions or vacate elections. The Court does not sustain the demurrer on this basis. Plaintiffs now identify the Club, the specific boards or committees within the Club whom Plaintiffs contend had responsibility for or control over conduct alleged in the Second Amended Complaint, and individual Club members who Plaintiffs contend engaged in conduct alleged in the Second Amended Complaint. Defendants argue that it is too confusing to tell who is being sued for what conduct, but the Second Amended Complaint provides adequate factual allegations as to each named defendant for Defendants to proceed. Defendants also contend that some individuals are no longer members of certain boards or committees, but that is a factual issue not appropriate for determination on demurrer. The parties can discern through discovery the specific individuals with the current ability to provide the relief Plaintiffs seek.

Defendants also argue that Defendants Executive Board, Sausalito Yacht Club Flag Officers and Chairs Committee, and Rules Committee cannot be named defendants because they are not separate legal entities from the Club. However, boards and committees, and individuals on those boards and committees, can be named as respondents in a writ of mandamus proceeding. (See Code Civ. Proc. § 1085; *Taylor v. Burks* (1907) 6 Cal.App. 225, 227-228; *State v. Superior Court* (1974) 12 Cal.3d 237, 255.)

3. Verifications; Certain Named Plaintiffs

Defendants demur to this cause of action on the additional ground that the individual plaintiffs have not verified the Second Amended Complaint, even though the Court indicated in its prior order that individual verifications were necessary. Plaintiffs concede that the individual Plaintiffs have not filed verifications, but state that they will. They attach the verifications of T. Blanchard and Bottari and state the others will be provided and filed before the hearing. The Court will address this issue at the hearing. To the extent there remain individuals who have not filed verifications by September 14, 2026, the Court will sustain the demurrer as to those individuals.

Defendants also argue that B. McArthur, R. Blanchard and Frank are not proper plaintiffs because they have served their suspensions, and B. McArthur's theory of his case and his damages is inconsistent with Club rules. These are fact issues not appropriate for determination on demurrer.

E. Second Cause of Action – Derivative Action

Defendants demur to the Second Cause of Action on the ground that all of the individual plaintiffs are not currently members of the Club and therefore cannot participate in a derivative action. Defendants argue that each of these individuals was suspended or expelled at the time of the filing of the original Complaint and thus not a member of the Club. Plaintiff SYCMFG has never been a member of the Club.

The demurrer is sustained as to SYCMFG, which has never been a member and therefore cannot bring a derivative claim. As to the individual plaintiffs, the Second Cause of Action alleges that “[a]t all relevant times, Petitioners/Plaintiffs were members in good standing of the Sausalito Yacht Club.” (SAC, ¶117.) However, they also allege that M. McArthur, Bottari, T. Blanchard, and R. Blanchard were expelled for life effective November 22, 2025. (*Id.*, ¶¶9, 17-20.) They allege that B. McArthur and Frank were suspended for six months. Frank's suspension was also effective November 22, 2025. (See SAC, ¶22.) Therefore, under these allegations, Frank was a member at the time the original Complaint was filed on November 21, 2025.¹ As the allegations do not show that she is not a member currently, she can proceed with the derivative action against the defendants. Further, as to all individual plaintiffs, there are

¹ Defendants state in their Reply that Frank has resigned from the Club and is no longer a member as of June 30, 2026. The Court does not consider this statement in ruling on the demurrer. (See *Kerivan v. Title Ins. & Trust Co.* (1983) 147 Cal.App.3d 225, 229.) In any event, the Court has found that Plaintiffs have alleged sufficient facts to support an exception to the continuous ownership rule.

sufficient facts alleged that an exception to the continuous ownership requirement may apply. In *Haro v. Ibarra* (2009) 180 Cal.App.4th 823, 836, the court noted that “equitable considerations might apply if the plaintiff was deprived wrongfully of standing.” Here, Plaintiffs allege that they were wrongfully expelled or suspended. This is sufficient to survive a demurrer based on this exception.

Defendants also argue that Plaintiffs are improperly using a derivative claim to recover for their personal damages rather than damages suffered by the Club. Defendants are correct that in paragraph 121, Plaintiffs ostensibly allege harm to the Club but this harm is actually the alleged mistreatment of the individual plaintiffs. (See SAC, ¶121.) However, Plaintiffs also allege damage to the Club. Plaintiffs allege that the Club has been harmed because it had to retain outside counsel and pay attorney’s fees, and that Club assets and funds have been diverted by the individual defendants to pursue a course of action against other members (the plaintiffs) whom they personally perceived as opponents. (*Id.*, ¶¶123, 125.) Plaintiffs’ prayer for relief also confirms they seek only damages in favor of the Club. (Prayer for Relief, ¶4.) Defendants argue that attorney’s fees and expenses paid by the Club is protected under the business judgment rule, but this is an issue of fact not appropriate for determination on demurrer. (See *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268, 280 [“The business judgment rule raises various issues of fact, including whether a director acted as an ordinarily prudent person under similar circumstances and made a reasonable inquiry as indicated by the circumstances. Such questions generally should be left to a trier of fact”] [citation and internal quotations omitted].)

Finally, Defendants argue that Plaintiffs have not sufficiently alleged compliance with Corporations Code Section 7710(b)(2), which provides: “The plaintiff alleges in the complaint with particularity plaintiff’s efforts to secure from the board such action as plaintiff desires, or the reasons for not making such effort, and alleges further that plaintiff has either informed the corporation or the board in writing of the ultimate facts of each cause of action against each defendant or delivered to the corporation or the board a true copy of the complaint which plaintiff proposes to file.” Plaintiffs have made allegations sufficient to comply with Section 7710(b)(2) in paragraphs 127-130 of the Second Amended Complaint. The demurrer is therefore not sustained on this basis.

F. Third Cause of Action – Declaratory Relief

Defendants demur to the Third Cause of Action for declaratory relief on the grounds that the individual plaintiffs lack standing under the continuous ownership rule and Plaintiffs do not adequately specify the defendants with whom they have a controversy. These arguments are rejected for the reasons discussed above. Defendants also argue that the declaration Plaintiffs seek violates the sections of the Club Bylaws that allow the Club Executive Board and Flag Officers and Chairs Committee exclusive jurisdiction over how the Bylaws and Rules are to be interpreted. This argument also fails. Plaintiffs are entitled to a declaration from the Court regarding the interpretation of the Bylaws as part of their claims that Defendants failed to act in good faith and in a fair and reasonable manner and that the Defendants’ election process was not valid.

II. Motion to Strike

Defendants move to strike allegations in support of the Second Cause of Action regarding harm to the individual plaintiffs. The Court denies this request as these allegations are part of an overall scheme and course of conduct alleged by Plaintiffs. Defendants move to strike allegations in support of the Third Cause of Action based on the same arguments they made in their demurrer. This portion of the motion is denied for the reasons discussed above. Defendants move to strike Plaintiffs' request for punitive damages on the ground it is not supported by sufficient facts showing malice, fraud or oppression. The Court denies this part of Defendants' motion as well. There are sufficient facts alleged to allow Plaintiffs to proceed with their prayer for punitive damages. Finally, Defendants move to strike the request for attorney's fees. The Court denies this as well, as an award of attorney's fees is available to plaintiffs in a successful derivative suit if the suit provided a substantial benefit to the corporation. (See *Brusso v. Running Springs Country Club* (1991) 228 Cal.App.3d 92, 111 n. 7; *Fletcher v. A. J. Indus., Inc.* (1968) 266 Cal. App. 2d 313, 320.)

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHnzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008471

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: ELLEN LINN STAPLES	
vs.	
DEFENDANT: CHRISTINA ALEXANDER PETERSEN, ET AL	

NATURE OF PROCEEDINGS: MOTION – ANTI-SLAPP 425.16

RULING

Defendants Kenneth Michael Petersen and Christina Alexander Petersen’s (together, “Petersen Defendants”) anti-SLAPP motion to strike is DENIED.

BACKGROUND

This is a premises liability case relating to a rental property in Novato. Plaintiff Ellen Lynn Staples (“Plaintiff”) alleges that on December 26, 2023, she tripped over a raised sprinkler head and injured herself while walking on a property owned and maintained by “Defendant.” (FAC, p. 4.) According to the FAC, “Defendant” knew or should have known about the sprinkler head and failed to “repair, cover, or provide warning” of it. (*Ibid.*) Plaintiff further alleges that she resided at the property and was exposed to hazardous mold during her tenancy. (*Id.* at p. 5.) Plaintiff asserts a cause of action for premises liability arising out of the sprinkler head incident, a separate cause of action for premises liability based on the mold, and a general negligence claim on both bases. (*Id.* at pp. 4-6.)

Before the Court is the Petersen Defendants’ anti-SLAPP motion to strike.

LEGAL STANDARD

“A cause of action against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” (Code Civ. Proc., § 425.16, subd. (b)(1).) The purpose of this statute is to identify and dispose of lawsuits brought to chill the valid exercise of a litigant’s

constitutional right of petition or free speech. (Code Civ. Proc., § 425.16, subd. (a); *Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049, 1055-1056.)

Courts use a two-step process to evaluate anti-SLAPP motions. (*Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 67.) First, the moving defendant must show that the challenged lawsuit arises from protected activity. (*Ibid.*) To establish protected activity, the defendant must demonstrate that “the act or acts underlying the plaintiff’s claim falls within one of the four categories [of protected activity] identified in section 425.16, subdivision (e).” (*Lee v. Silveira* (2016) 6 Cal.App.5th 527, 538; accord *Howard Jarvis Taxpayers Assn. v. Powell* (2024) 105 Cal.App.5th 955, 968.) In determining whether a complaint or a subset of it “arises from” protected activity, “[t]he critical consideration is whether the cause of action is *based on* the defendant’s free speech or petitioning activity.” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 89 [emphasis added]; see also *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396.) “Courts deciding an anti-SLAPP motion . . . must consider the claim’s elements, the actions alleged to establish those elements, and whether those actions are protected.” (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1015; accord *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1062.)

If the defendant makes this “threshold showing[.]” the court proceeds to the second step, where the plaintiff must demonstrate a probability of prevailing on the merits of the claims at issue. (*Equilon Enterprises, supra*, 29 Cal.4th 53, 67; Code Civ. Proc., § 425.16, subd. (b)(1).) “Only a cause of action that satisfies *both* prongs of the anti-SLAPP statute – i.e., that arises from protected speech or petitioning *and* lacks even minimal merit – is a SLAPP, subject to being stricken under the statute.” (*Navellier, supra*, 29 Cal.4th 82, 89 [emphasis in original].)

DISCUSSION

The Petersen Defendants own a home at 19 Creekview Court in Novato. (K. Petersen Dec., ¶ 1.) Plaintiff began leasing space in that home in 2021. (*Id.* at ¶ 3.) According to Kenneth Petersen, during her tenancy, Plaintiff habitually violated the house rules and started disputes with other tenants. (*Id.* at ¶¶ 4-5.) In August 2023, Mr. Petersen informed Plaintiff that her tenancy was terminated. (*Id.* at ¶ 6 & Ex. 3.) Mr. Petersen and Plaintiff had a meeting to determine whether the issues could be resolved so that Plaintiff could remain at the property. (*Id.* at ¶ 7.) Plaintiff did not change her behavior, but nevertheless remained living at the property for several more months. (*Id.* at ¶¶ 9.) On January 26, 2024, the Petersen Defendants commenced unlawful detainer proceedings to remove Plaintiff from the property. (See Complaint filed Jan. 26, 2024 in Marin County Superior Court Case No. CV0001925.¹) Plaintiff initiated this lawsuit in December 2025.

¹ The Court takes sua sponte judicial notice of this material. (Evid. Code, § 452, subd. (d); *Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 743, 752 [court may take judicial notice sua sponte].) Although the Petersen Defendants evidently intended to request judicial notice of the January 26, 2024 complaint that initiated the unlawful detainer action (see Memorandum, p. 5 [citing to RJN, Ex. 1 to establish the date the unlawful detainer action commenced]; RJN at ¶ 1), they did not attach that document to their request for judicial notice. RJN Ex. 1 is a July 18, 2024 filing in the unlawful detainer action that is denominated a motion for leave to file a first amended complaint, but simultaneously purports to be the amended complaint itself. The Petersen Defendants’ request for judicial notice of the operative complaint in this action is granted. (Evid. Code, § 452, subd. (d).)

The Petersen Defendants argue that Plaintiff's case arises out of protected activity because she filed this lawsuit in retaliation for the Petersen Defendants' telling her to vacate their property and/or commencing an unlawful detainer proceeding against her. (Memorandum, pp. 1, 10.) On this theory, Plaintiff's claims arise out of activity that is protected under Code of Civil Procedure, section 425.16, subdivisions (e)(1) ("any written or oral statement or writing made before a . . . judicial proceeding") and/or (e)(2) ("any written or oral statement or writing made in connection with an issue under consideration or review by a . . . judicial body").

Accepting purely for purposes of argument that Plaintiff *did* file this lawsuit in retaliation for the Petersen Defendants' unlawful detainer action or their statements in connection with that action, that is not sufficient to establish that any of her claims arise out of activity protected by the anti-SLAPP statute. "The mere fact that a claim may have been *triggered* by protected activity (such as service of unlawful detainer papers) does not necessarily mean it *arose from* that activity." *Oakland Bulk & Oversized Terminal, LLC v. City of Oakland* (2020) 54 Cal.App.5th 738, 747, fn. 6 [emphasis in original]; accord *Ulkarim v. Westfield LLC* (2014) 227 Cal.App.4th 1266, 1275; *Navellier, supra*, 29 Cal.4th 82, 89; *Ben-Shahar v. Pickart* (2014) 231 Cal.App.4th 1043, 1051.)

The only way a defendant can show that a cause of action arises from protected activity "is to demonstrate that *the defendant's conduct by which the plaintiff claims to have been injured* falls within one of the four categories described in [Code of Civil Procedure, section 425.16, subdivision] (e)[.]" (*Equilon Enterprises, supra*, 29 Cal.4th 53, 66 [emphasis added].) Thus, whether a cause of action arises from protected activity turns on whether protected activity supplies an element of the cause of action. (*Bonni, supra*, 11 Cal.5th 995, 1015; *Park, supra*, 2 Cal.5th 1057, 1063; see also *Littlefield v. Littlefield* (2024) 106 Cal.App.5th 815, 823 [affirming denial of anti-SLAPP motion where movants " 'fail[ed] to state the elements of the challenged claim and identify what actions by [the defendants] supply those elements and form the basis for liability' "] [quoting the trial court's decision].)

The Petersen Defendants lean on their filing the unlawful detainer action against Plaintiff, or making statements in connection with that action, as the protected activity on which their motion rests, but Plaintiff's complaint does not refer to the unlawful detainer action or the Petersen Defendants' statements about it in any way. The operative pleading does not reveal that there was ever a dispute, in court or outside of it, surrounding Plaintiff's tenancy at the Petersen Defendants' property prior to Plaintiff's filing this lawsuit. Plaintiff's causes of action are entirely based on the Petersen Defendants' alleged placement of a sprinkler head and their alleged failure to manage mold at the property.

The Petersen Defendants stress that when determining whether a cause of action arises out of protected activity, courts do not limit themselves to the text of the pleading, but consider extrinsic evidence. (See *Bel Air Internet, LLC* (2018) 20 Cal.App.5th 924, 935.) Even so, the critical issue at the first step of the anti-SLAPP analysis is whether the pleading relies on protected activity to supply an element of a cause of action. (*Bonni, supra*, 11 Cal.5th 995, 1015; see also *Bel Air Internet, supra*, 20 Cal.App.5th 924, 936 ["A plaintiff's complaint ultimately defines the contours of the claims" for anti-SLAPP purposes].) Extrinsic evidence may be useful to clarify what conduct a vague complaint is referring to in its description of the bases for its claims. (See *Coretronic Corp. v. Cozen O'Connor* (2011) 192 Cal.App.4th 1381, 1389 ["In the

first step of the anti-SLAPP analysis, . . . [t]he court reviews the parties' pleadings, declarations and other supporting documents to *determine what conduct is actually being challenged*[.]” [emphasis added].) But where neither the pleading nor any other material indicates that the complaint asserts protected activity as an element of a cause of action, as is the case here, the anti-SLAPP motion must be denied.

The Petersen Defendants rely on *Feldman v. 1100 Park Lane Associates* (2008) 160 Cal.App.4th 1467. *Feldman* is no longer good law given the First District's subsequent commentary on the case in *Oakland Bulk, supra*, 54 Cal.App.5th 738, 747, fn. 6. Even if it were, the Court would consider it distinguishable. In *Feldman*, the court held that the pleading at issue arose out of protected activity, specifically the filing of an unlawful detainer action, the service of a three-day notice to quit, and a defendant's "statements in connection with the threatened unlawful detainer." (160 Cal.App.4th 1467, 1483.) The court explained, "These activities are not merely . . . evidence of wrongdoing or activities 'triggering' the filing of an action that arises out of some other independent activity. These *are* the challenged activities and the bases for all causes of action[.]" (*Ibid.* [emphasis in original].) For example, the pleading contained a breach of contract claim alleging that the defendants had breached a contract *by* threatening to evict the plaintiffs, serving them with a three-day notice to quit, and commencing unlawful detainer proceedings against them. (*Id.* at p. 1484.) Those actions were alleged to supply the "breach" element of the breach of contract claim. (*Ibid.*) In the instant case, the Petersen Defendants have not similarly identified a protected activity as supplying an element of any of Plaintiff's claims.

Because it has determined that the motion must be denied on the merits, the Court does not reach the parties' arguments as to its timeliness.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008587

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: PRESERVE TAM
VALLEY

vs.

DEFENDANT: MARIN COUNTY, ET AL

NATURE OF PROCEEDINGS: REVIEW HEARING

RULING

Appearances required.

Parties should be prepared to focus their arguments on the term “Scrap and Dismantling Yards” and address the standard of review for an administrative agency’s interpretations of law. To the extent either party argues that the court should consider *Yamaha Corp. of America v. State Bd. of Equalization* (1998) 19 Cal.4th 1, 7-8, which was not referenced in Respondent’s brief, the parties shall address the factors set forth under that case as they apply to the meaning of this term.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008683

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: GREGORY BORCHARDT

vs.

DEFENDANT: THE WINDCHIME
GROUP LLC, ET AL

NATURE OF PROCEEDINGS: MOTION – COMPEL ARBITRATION

RULING

The Petition to Compel Arbitration by Defendants The Windchime Group, LLC, Integral Senior Living, LLC DBA Windchime of Marin, Windchime of Marin Management, LP, Integral SL Management, LLC, Steven Dirk Mellema, and Lauren Cottman (“Defendants”) is DENIED.

BACKGROUND

Linda Eurman was an elder adult with Alzheimer’s. (Compl., ¶¶ 1, 13.) On or around August 25, 2025, Ms. Eurman was admitted to Windchime of Marin (the “Facility”), a licensed residential care facility for the elderly in Kentfield, California. (*Id.*, ¶¶ 2, 32-33.) The Facility is owned, operated, managed, administered, and controlled by Defendants. (*Id.*, ¶ 4.)

Plaintiff alleges that despite knowledge of Ms. Eurman’s fall risk, Defendants never implemented any fall prevention precautions for her. (*Id.*, ¶ 46.) Plaintiff alleges this was a result of Defendants deliberately understaffing the Facility to decrease costs and increase their revenues. (*Id.*, ¶¶ 15, 22, 24, 43-44.) As a result, Ms. Eurman suffered numerous falls and after each fall Defendants failed to investigate, assess her, update her care plan, or implement any fall prevention interventions. (*Id.*, ¶¶ 48, 52.) On the morning of September 11, 2025, Ms. Eurman suffered a serious fall at the Facility that caused a traumatic brain injury. (*Id.*, ¶¶ 51, 53.) Thereafter, Ms. Eurman’s condition deteriorated rapidly, and she died on December 16, 2025. (*Id.*, ¶¶ 2, 54.)

On December 30, 2025, plaintiffs Gregory Borchardt, as Successor-in-Interest of Linda Eurman, as Executor of the Linda Eurman Revocable Trust, as Personal Representative of the Linda Eurman Revocable Trust and as Trustee of the Linda Eurman Revocable Trust and the Estate of Linda Eurman (“Plaintiffs”), filed this lawsuit. (Compl., ¶ 3.) Plaintiffs assert claims for

elder abuse and neglect, negligence/willful misconduct, premises liability, and intentional infliction of emotional distress. On February 25, 2026, Defendants filed their Answer to the Complaint denying the allegations. Defendants now petition to compel arbitration based on an Arbitration Agreement signed by Mr. Borchardt under a power of attorney in connection with Ms. Eurman's admission.

LEGAL STANDARD

Under the Federal Arbitration Act (9 U.S.C. § 1 et seq. ("FAA")) " '[a] written provision in ... a contract evidencing a transaction involving [interstate] commerce to settle by arbitration the controversy thereafter arising out of such contract or transaction, ... shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.' " (9 U.S.C. § 2.)" (*Broughton v. Cigna Healthplans of California* (1999) 21 Cal.4th 1066, 1073-1074, superseded on other grounds as stated in *Pac. Fertility Cases* (2022) 85 Cal.App.5th 887, 900.) The FAA was intended to reverse centuries of judicial hostility to arbitration agreements by putting arbitration agreements upon the same footing as other contracts. (*Shearson/American Exp., Inc. v. McMahon* (1987) 482 U.S. 220, 225-226.)

However, arbitration – whether under the California Arbitration Act ("CAA") or FAA – "is a matter of consent, not coercion ... a party cannot be required to submit to arbitration any dispute which he has not agreed so to submit." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236 [internal quotations and citations omitted].)

The party seeking to arbitrate must prove the existence of the agreement. (*Ibid.*) If it does so, the burden shifts to the party opposing arbitration to "demonstrate that an arbitration provision cannot be interpreted to require arbitration of the dispute" or that the agreement is otherwise unenforceable. (*Coast Plaza Doctors Hospital v. Blue Cross of California* (2000) 83 Cal.App.4th 677, 686-87.)

DISCUSSION

Defendant bring this Motion on the grounds that: (1) there exists a written agreement between the Defendants and Plaintiffs, which provides for arbitration of Plaintiffs' claims as alleged in the Complaint, and (2) Defendants requested compliance with the Agreement to Arbitrate but Plaintiffs refused to do so.

The Arbitration Agreement

The Arbitration Agreement itself is attached to the Compendium of Evidence in Support of Motion as Exhibit 7. The second paragraph of the Arbitration Agreement reads:

By signing below, you agree that any and all claims and disputes arising from or related to this Agreement or to your residency, care or services at WINDCHIME OF MARIN, whether made against us or any other individual or entity, including, without limitation, personal injury or wrongful death claims, shall be resolved by submission to neutral, binding arbitration in accordance with the Federal

Arbitration Act; except that any claim or dispute involving unlawful detainer proceedings (eviction) or any claims that can be brought in small claims court shall not be subject to arbitration unless both parties agree to arbitrate such proceedings. You agree that an arbitrator will decide any question about whether a claim or dispute must be arbitrated under this arbitration clause.

In the third paragraph, it reads that in signing the Arbitration Agreement:

“You give up your constitutional right to have any such dispute decided in a court of law before a jury, and instead accept the use of arbitration. You further waive your right to participate in a representative capacity, or to participate as a member of a class, in any litigation or arbitration proceeding with respect to any such dispute... You may withdraw your agreement to arbitrate within thirty (30) days after signing this Agreement by giving written notice of your withdrawal to us.”

Finally, just above the signature line, it reads:

“... you warrant that this paragraph has been explained to you, that you understand its significance, that you voluntarily agree to be bound by it, and that you understand that agreeing to arbitration is not a condition of admission to the Community.”

The Arbitration Agreement was executed by Gregory Borchardt under “Power of Attorney.”

In support of their Motion, Defendants have outlined the following facts:

At the time of admission, Gregory Borchardt held Durable Power of Attorney (“DPOA”) for Ms. Eurman which granted him authority to, among other things, “demand, arbitrate, and pursue litigation on the principal’s behalf concerning all rights and benefits to which the principal may be entitled; and to compromise, settle and discharge all such matters as the agent considers appropriate under the circumstances.” (Compendium of Exhibits in Support of Motion, Ex. 1, Pg. 3, ¶ 5.)

This DPOA also granted Mr. Borchardt authority to:

“Do all things and enter into all transactions necessary to provide for the principal's personal care and to maintain the principal's customary standard of living; to provide suitable living quarters for the principal; and to hire and compensate household, nursing, and other employees as the agent considers advisable for the principal's well being. The above shall specifically include but not be limited to the authority to pay the ongoing costs of maintenance of the principal's present and future residence, such as interest, taxes, and repairs; to procure and pay for clothing, transportation, medicine, medical care, food, and other needs; and to make arrangements, enter into contracts, and commit the principal's resources on the principal's behalf with respect to provision of residential care for the principal in a convalescent hospital, skilled nursing home, or other alternative residential facility.” (*Id.*, pg. 4, ¶ 14.)

Finally, the DPOA granted Mr. Borchardt authority to “perform any other act, deed, matter, or thing, that in the opinion of the agent ought to be done, executed, or performed in conjunction with this power of attorney, of every kind and nature, as fully and effectively as the principal could do if personally present...” (*Id.*, pg. 5, ¶ 15.) Mr. Borchardt also held a Power of Attorney for Healthcare on behalf of Decedent. (*Id.*, Ex. 2.)

In Opposition, Plaintiff argues that Mr. Borchardt lacked actual authority because the DPOA never took effect because it required two designated physicians to execute declarations under penalty of perjury, making the requisite findings. The DPOA states that it “shall become effective only upon the incapacity of the undersigned principal” “when any two of the designated persons [i.e. “[t]he principal’s treating physician” or “a second licensed physician”] execute written declarations under penalty of perjury that the principal does not have sufficient understanding or ability to make or communicate decisions about the principal’s property, finances, or personal business.” (Compendium, Ex. 1 at 1.) They further add that Mr. Borchardt lacked ostensible authority because Ms. Eurman made no representations to Defendants that would cause them to believe that Mr. Borchardt had such authority.

On Reply, Defendants state that Dr. Amy Wen Liu completed a “Physician’s Report for Residential Care Facilities for the Elderly.” (Compendium, Ex. 3.) Within this report, Dr. Liu explained that Decedent has early onset Dementia, which is “severe” with agitation. This diagnosis resulted in “[t]he loss of intellectual function (such as thinking, remembering, reasoning, exercising, judgment, and decision making) and other cognitive functions, sufficient to interfere with an individual’s ability to perform activities of daily living or to carry out social or occupational activities.” (*Id.*) The Report further states that Decedent is confused and disoriented and lacks the ability to manage her own cash resources. (*Id.*) Importantly, Defendants contend that Dr. Liu’s August 13, 2025 Report was confirmed by a second physician, Dr. Mark Roger Taylor on March 19, 2025. (*Id.*) The Court notes that only Dr. Roger appears to have signed the Report. Dr. Liu’s signature is nowhere to be found, but it is implied, although unclear, that she drafted the Report and Dr. Roger “signed off” on it. The Court notes that there is no declaration under penalty of perjury by either doctor.

As for the Report itself, “such evidence does not substitute for satisfaction of the condition stated in the terms of [the] directive.” (*Young v. Horizon West, Inc.* (2013) 220 Cal.App.4th 1122, 1128 [Appellants' first theory regarding Bobbi's authority to bind plaintiff to arbitration is that she was plaintiff's agent, based on a power of attorney for health care (POA), which was part of plaintiff's advanced health care directive. The POA provided that when plaintiff's primary physician determined that she was unable to make her own health care decisions, her “agent” was authorized to make specified health care decisions for her. Appellants concede that plaintiff's physician never made this determination, but they maintain that the evidence supplied in her deposition established her complete incapacity and need for Bobbi's intervention. As the trial court recognized, however, such evidence does not substitute for satisfaction of the condition stated in the terms of plaintiff's advanced health care directive.].)

Similarly here, the DPOA by its terms would only become effective upon *written declarations under penalty of perjury* by the treating physician and another licensed doctor. The parties appear to concede that these do not exist, but Defendants suggest that the Report, not executed under penalty of perjury and signed by only one doctor, along with the allegations in

the Complaint should be substituted for the condition stated in the DPOA. The Court declines to do so.

Defendants have failed to demonstrate that Mr. Borchardt had authority to sign the Arbitration Agreement on behalf of Ms. Eurman under a DPOA that, by its terms, had not taken effect at the time of signing.

For these reasons, the Motion is DENIED.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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